

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

November 25, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 12, 2024. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, tracts of land situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as ‘North Range Business Park’, located northwest of the I-80 and Roundtop Road interchange). Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Daunte Rushton, Cheyenne Leads.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of LI Light Industrial and BP Business Park for tracts of land being annexed to the City situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as ‘North Range Business Park’, located northwest of the I-80 and Roundtop Road interchange). Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AG Agricultural and HI Heavy Industrial to AG Agricultural for land located south of Campstool Rd and north of Interstate 80. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located north of Bevans Street, west of College Drive and south of Dell Range Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Cook.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR - Medium-Density Residential, HR - High Density Residential, and CB - Community Business for land annexed to the City of Cheyenne generally located north of Bevans Street, west of College Drive, and south of Dell Range Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR - Agricultural Residential, LR Low-Density Residential, MR - Medium-Density Residential, and MUR Mixed-Use Residential for land annexed to the City of Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public and MUR Mixed-Use Residential to MUB Mixed-Use Business for land located northeast of the intersection of Morrie Avenue and East Lincolnway. Mr. Roybal moved to approve on second reading, seconded by Dr. Rinne. Mr. Roybal moved to amend by substitute dated November 19, 2024, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Public comment was made by: Brandon Swain. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn, Dr. Rinne and Mr. Segrave.

ORDINANCE – 2nd READING – Amending Section 8.60.080, Non-Compliant Vehicles as a Nuisance, of the Municipal Code of the City of Cheyenne, Wyoming, declaring oversized vehicles as a nuisance, providing for their regulation, clarifying provisions and making conforming amendments. Reporting for Committee of the Whole, Mr. Esquibel moved to approve on second reading, seconded by Mr. Johnson. Mr. Esquibel moved to approve by substitute dated November 25, 2024, seconded by Mr. Johnson. Motion to amend by substitute failed. Voting “yes” – Mr. Esquibel, Dr. Rinne, Mr. Roybal and Mr. White. Voting “no” – Dr. Aldrich, Mr. Cook, Mr. Johnson, Mr. Laybourn and Mr. Segrave. Dr. Rinne moved to amend by increasing height size

from 8 feet to 9 feet on page 4, paragraph 8, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Laybourn voting “no”. Dr. Aldrich moved to amend to provide an oversized vehicle exemption for ADA vehicles on page 4, paragraph 8, seconded by Mr. Esquibel. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Laybourn voting “no”. Main motion as twice amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Laybourn voting “no”. Public comment was made by the following: Lee Filer, Gary Everett, Joseph McCord, Jonathan Frazier, Alan Sheldon, Abigail Boudewyns, John Puls, William Zaczek, Gary Hanway, Maeke Ermarth, Daryl Orr, Kathy Scigliano, Daniel Marces and Garrett Harley. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White.

Mayor Collins reconvened the meeting 8:05 p.m. after a brief recess.

ORDINANCE – 2nd READING – Creating Chapter 13.32, Stormwater Runoff Management System, of Title 13, Public Services, of the Municipal Code of the City of Cheyenne, Wyoming, establishing the Stormwater Runoff Management System, imposing a user fee for necessary funding and repealing obsolete provisions. Mr. Esquibel moved to approve on second reading, seconded by Mr. Roybal. Mr. Esquibel moved to amend by substitute dated November 19, 2024, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by: Alan Sheldon. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Dr. Rinne and Mr. Segrave.

ORDINANCE – 2nd READING – Specifying the monthly Stormwater Runoff Management System User Fee in accordance with Section 13.32.050 of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Esquibel moved to approve on second reading, seconded by Mr. White. Mr. Esquibel moved to amend by substitute dated November 19, 2024, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by: Brandon Swain. Comments were made by the following members of the governing body: Mr. Esquibel and Mr. Laybourn.

ORDINANCE –1st READING – Amending subsections 6.6.3.b.3, 6.7.5.c, and 6.9.4.e of the Unified Development Code (UDC), changing building façade design requirements for multifamily residential development – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending Chapter 2.16.010 of the Municipal Code of the City of Cheyenne, Wyoming, requiring the City Treasurer to annually evaluate and report to the Governing Body any outstanding debt owed the City by any City Board, Council or Commission Member – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Cook and Mr. Johnson)

ORDINANCE –1st READING – Amending Chapter 8.68, Camping on Public Property, of the Municipal Code of the City of Cheyenne, Wyoming, expanding the general prohibition on camping to all public property of the City, creating a permitting process, making conforming amendments and repealing obsolete provisions – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyoming Statute § 16-4-502. Motion (per Consent Agenda) carried. (#6438)

RESOLUTION – Certifying Planning Commission action amending the Future Land Use maps of PlanCheyenne changing the land use category from Open Space and Parks to Mixed-Use Commercial for property generally located northeast of the intersection of Morrie Avenue and East Lincolnway. Mr. Roybal moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Public comment was made by: Brandon Swain. (#6439)

[CA] RESOLUTION – Directing City staff to evaluate and determine an effective drainage plan for the intersection of Bevans Street and Wills Road and the adjacent areas. Motion (per Consent Agenda) carried. (#6440)

RESOLUTION – By the Governing Body designating a Paid On-Street Parking District for Downtown Cheyenne in accordance with Section 10.60.015 of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Dr. Aldrich moved to adopt, seconded by Mr. Johnson. Dr. Aldrich moved to amend by substitute dated November 13, 2024, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Dr. Aldrich moved to amend by substitute dated November 25, 2024, seconded by Mr. Johnson. Motion to amend carried. Voting “yes” – all members of the governing body. Dr. Aldrich moved to amend the map by moving the district boundaries from 22nd St. north from Pioneer to Carey and from 24th St. north to 26th St., seconded by Dr. Rinne. Motion failed. Voting “no” – all members of the governing body with the exception of Dr. Aldrich and Dr. Rinne voting “yes”. Main motion as twice amended by substitute carried. Voting “yes” - all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by the following: Daniel Singh, Carmen Hess, Exie Brown, Brad Koch, Corey Loghry, Alan Sheldon, John Puls, Joe McCord, Lee Filer, Kathy Scigliano, Maeke Ermarth, Kathleen Scarpensky, Danica Mrozinsky, Steve Melia, Daniel Marces, Roberta Dunlap and Andrew Coleman. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White. (#6441)

[CA] RESOLUTION – Authorizing a one-time payment from Fiscal Year 2024 budget savings given to full-time and permanent part-time employees of the City of Cheyenne (excluding elected officials and employees of the Cheyenne Board of Public Utilities) – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Encouraging City staff to solicit public comment on changes to the administration of sanitation pickup locations and further directing City staff to coordinate with Univerus, Inc. to schedule a meeting before the Governing Body regarding the Sanitation Rerouting and Optimization Project – referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security to support expenses and equipment costs for the Cheyenne Fire Rescue RERT7 Team through the State Homeland Security Program Fiscal Year 2024 (WOHS FEMA SHSP Grant FY24). Motion (per Consent Agenda) carried (in an amount of \$112,651.00). (#8091)

Public Facility and Circulation Easement Agreement between the City of Cheyenne and Magic City Enterprises Inc. regarding access to the properties between 1780 and 1800 Westland Road (FTA Federal Grant). Dr. Aldrich advised there was no recommendation from Finance Committee. Dr. Aldrich moved to approve, seconded by Mr. Roybal. Dr. Aldrich moved to amend by substitute dated November 25, 2024, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins and Mr. Cook (#8092)

[CA] Contract Modification #4 to Contract #7437 between the City of Cheyenne and Brandon Swain for a Purchase and Sale Agreement for the sale of surplus land located northeast of the intersection of Morrie Avenue and Lincolnway, to add a requirement that the buyer of the land provide required parking for development, regardless of zone or overlay – referred to Public Services Committee.

[CA] Consideration of Bid #E-4-25 for (3) Fire Apparatus for the City of Cheyenne, Cheyenne Fire Rescue Department (Future Ballot Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$5,023,363.63).

[CA] Consideration to Purchase between the City of Cheyenne and Flock Group Inc., d/b/a Flock Safety, for the purchase of Flock Safety License Plate Readers and Flock OS Software for the City of Cheyenne Police Department (ARPA Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$146,300.00). (#8093)

[CA] Consideration of Bid #S-7-25 for an Agreement between the City of Cheyenne and Fencetrak Inc. d/b/a Full Tilt Services for the Belvoir Ranch Trailhead and Access Roads Project (Belvoir Ranch Recreation Fund and Wyoming Outdoor Recreation Grant) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Mr. Johnson commented on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held December 9, 2024, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference

meeting, for a bar & grill liquor license application filed with the City Clerk's Office for Rock Ranch LLC d/b/a Nellie's, 4020 Airport Parkway, Cheyenne, WY.

Announcement was made of a Public Hearing to be held December 9, 2024, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 0.13 acres of land located north of Cheyenne Street and west of and adjacent to Ridge Road.

Public comment was made by the following under Other Business: Judson Green and Joe McCord.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:52 p.m.

Submitted by,

Kris Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 4, 2024